

An Act

ENROLLED SENATE
BILL NO. 1216

By: Rader of the Senate

and

Harris of the House

An Act relating to drug courts; amending 22 O.S. 2021, Section 471.2, as amended by Section 2, Chapter 277, O.S.L. 2022 (22 O.S. Supp. 2025, Section 471.2), which relates to eligibility for drug court; modifying eligibility requirements; updating statutory language; and providing an effective date.

SUBJECT: Eligibility for drug court

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 22 O.S. 2021, Section 471.2, as amended by Section 2, Chapter 277, O.S.L. 2022 (22 O.S. Supp. 2025, Section 471.2), is amended to read as follows:

Section 471.2. A. The opportunity for review of an offender for a drug court program shall occur at any time prior to disposition of the case and sentencing of the offender including sentencing on a petition to revoke a suspended sentence or any probation violation.

B. When a drug court is established, the following information shall be initially reviewed by the sheriff or designee, if the offender is held in a county jail, or by the chief of police or designee, if the offender is held in a city jail:

1. ~~The offender has no prior felony conviction in this state or another state for a domestic violence offense within the last ten (10) years~~ offender's charge does not involve a violation set forth

in subsection C, D, E, F, G, or J of Section 644 of Title 21 of the Oklahoma Statutes, except as may be allowed in a domestic violence treatment program authorized by the drug court program. ~~It shall be sufficient for this paragraph that a criminal history records name search was conducted and indicated no apparent domestic violence offense.~~ An offender admitted to the drug court program for a crime which requires the offender to attend a batterers' intervention program certified by the ~~Attorney General's office~~ Office of the Attorney General shall be required to undergo such treatment as a condition of drug court;

2. The offender's charge does not involve a violation of the Trafficking In Illegal Drugs Act;

3. The offender has committed a felony offense or a misdemeanor offense where a misdemeanor drug court is authorized; and

4. The offender:

- a. admits to having a substance abuse addiction,
- b. appears to have a substance abuse addiction,
- c. is known to have a substance abuse addiction,
- d. ~~the~~ has an arrest or charge that is based upon an offense eligible for the drug court program, or
- e. is a person who has had an assessment authorized by Section 3-704 of Title 43A of the Oklahoma Statutes or drug court investigation and the assessment or investigation recommends the drug court program.

C. If it appears to the reviewing officer that the offender may be potentially eligible for the drug court program based upon a review of the information in subsection B of this section, the offender shall be given an eligibility form which may be voluntarily completed by the offender, and the reviewing officer shall file the criminal case record within the time prescribed in subsection E of Section 471.1 of this title. The offender may request consideration for the drug court program as provided in subsection D of this section. The eligibility form shall describe the drug court program

for which the offender may be eligible including, but not limited to:

1. A full description of the drug court process and investigation;

2. A general explanation of the roles and authority of the supervising staff, the district attorney, the defense attorney, the treatment provider, the offender, and the judge presiding over the cases in the drug court program;

3. A clear statement that the drug court judge may decide after a hearing not to consider the offender for the drug court program and in that event the offender will be prosecuted in the traditional manner;

4. A clear statement that the offender is required, before consideration in the program, to enter a guilty plea as part of a written plea agreement;

5. A clear statement that the plea agreement will specify the offense to which the guilty plea will be entered and will state any penalty to be imposed for the offense, both in the event of a successful completion of the drug court program, and in the event of a failure to complete the program;

6. A clear statement that the offender must voluntarily agree to:

- a. waive the right to a speedy trial,
- b. waive the right to a preliminary hearing,
- c. the terms and conditions of a treatment plan, and
- d. sign a performance contract with the drug court;

7. A clear statement that the offender, if accepted into the drug court program, may not be incarcerated for the offense in a state correctional institution or jail upon successful completion of the program;

8. A clear statement that during participation in the drug court program, should the offender fail to comply with the terms of the agreement, the offender may be sanctioned to serve a term of confinement of six (6) months in an intermediate revocation facility operated by the Department of Corrections. An offender shall not be allowed to serve more than two separate terms of confinement in an intermediate revocation facility;

9. A clear statement that during participation in the drug court program, should the offender:

- a. fail to comply with the terms of the agreements,
- b. be convicted of a misdemeanor offense which reflects a propensity for violence,
- c. be arrested for a violent felony offense, or
- d. be convicted of any felony offense,

the offender may be required, after a court hearing, to be revoked from the program and sentenced without trial pursuant to the punishment provisions of the negotiated plea agreement; and

10. An explanation of the criminal record retention and disposition resulting from participation in the drug court program following successful completion of the program.

D. 1. The offender may request consideration for the drug court program as follows:

- a. if the offender is incarcerated, the offender must sign and complete the eligibility form and return it to the sheriff, if the offender is held in the county jail; or to the chief of police, if the offender is held in a city jail. The sheriff or chief of police, upon receipt of the completed eligibility form, shall file the form with the drug court coordinator who shall forward the form to the district attorney and the judge assigned to the offender's case, or

- b. after release of the offender from incarceration, the offender must sign and complete the eligibility form and file it with the drug court coordinator or the court, prior to or at the time of either initial appearance or arraignment. The drug court coordinator shall forward the form to the district attorney and the judge assigned to the offender's case.

2. Any offender desiring legal consultation prior to signing or completing the form for consideration in a drug court program shall be referred to the defense attorney of the drug court team, or a public defender, if the offender is indigent, or allowed to consult with private legal counsel.

3. Nothing contained in the provisions of this subsection shall prohibit the drug court from considering any offender deemed eligible for the program at any time prior to sentencing whose case has been prosecuted in the traditional manner, or upon a violation of parole or probation conditions relating to substance abuse, upon recommendation of the district attorney as provided in Section 471.8 of this title.

E. When an offender has filed a request to be considered for a drug court program, an initial hearing shall be set before the drug court judge. The hearing shall be not less than three (3) work days nor more than five (5) work days after the date of the filing of the request form. Notice of the hearing shall be given to the drug court team, or in the event no drug court team is designated, to the offender, the district attorney, and ~~to~~ the public defender. The offender shall be required to notify any private legal counsel of the date and time of the hearing.

SECTION 2. This act shall become effective November 1, 2026.

Passed the Senate the 2nd day of March, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 6th day of May, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____